

Ireland at the date of the passing of this Act under which a period is prescribed as the period within which any action to which such enactment relates is required to be brought, but does not include any enactment prescribing a period within which any criminal proceedings, or any proceedings to recover any penalty imposed as a punishment for a criminal offence, or any proceedings before a court of summary jurisdiction must be brought.

6.—(1) This Act may be cited as the Limitation (Enemies and War Prisoners) Act, 1945. Short title
and date of
operation.

(2) This Act shall be deemed to have had effect as from the third day of September, nineteen hundred and thirty-nine.

CHAPTER 17.

Wages Councils Act, 1945.

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An Act to provide for the establishment of wages councils, and otherwise for the regulation of the remuneration and conditions of employment of workers in certain circumstances.

[28th March 1945.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I.

ESTABLISHMENT OF WAGES COUNCILS.

Power of
Minister to
establish
wages councils.

1.—(1) Subject to the provisions of this Part of this Act, the Minister of Labour and National Service (hereafter in this Act referred to as "the Minister") may by order establish a wages council to perform, in relation to the workers described in the order and their employers, the functions specified in the subsequent provisions of this Act.

(2) An order establishing a wages council (hereafter in this Act referred to as a "wages council order") may be made by the Minister either—

PART I.
—cont.

- (a) if he is of opinion that no adequate machinery exists for the effective regulation of the remuneration of the workers described in the order and that, having regard to the remuneration existing amongst those workers or any of them, it is expedient that such a council should be established; or
- (b) in the circumstances hereinafter specified, in pursuance of a wages council recommendation made in accordance with the subsequent provisions of this Part of this Act.

2.—(1) An application for the establishment of a wages council with respect to any workers and their employers may be made to the Minister either—

Applications
for wages
council orders
and reference
to commission
of inquiry.

- (a) by a joint industrial council, conciliation board or other similar body constituted by organisations representative respectively of those workers and their employers; or
- (b) jointly by any organisation of workers and any organisation of employers which claim to be organisations that habitually take part in the settlement of remuneration and conditions of employment for those workers,

on the ground, in either case, that the existing machinery for the settlement of remuneration and conditions of employment for those workers is likely to cease to exist or be adequate for that purpose.

(2) Subject to the provisions of this and the next succeeding subsection, where such an application as aforesaid is made to the Minister, the Minister shall—

- (a) if he is satisfied, in the case of an application under paragraph (b) of the preceding subsection, that the claim of the organisations habitually to take part in the settlement of remuneration and conditions of employment for those workers is well-founded and, in any case, that there are sufficient grounds to justify the reference of the application to a commission of inquiry, refer the application to such a commission to inquire into and report on the application;
- (b) if he is not so satisfied, notify the applicants to that effect, in which case no further steps shall be taken on the application unless and until he is so satisfied by fresh facts brought to his notice:

PART I.
—cont.

Provided that before taking either of the said courses, the Minister may require the applicants to furnish such information, if any, in relation to the application as he considers necessary.

(3) If, on considering an application under subsection (1) of this section, it appears to the Minister either—

- (a) that there is a joint industrial council, conciliation board or other similar body constituted by organisations of workers and organisations of employers, being a council, board or body which would or might be affected by the establishment of a wages council in pursuance of the application; or
- (b) that there are organisations of workers and organisations of employers representative respectively of workers other than workers to whom the application relates and their employers, who would or might be affected by the establishment of a wages council as aforesaid,

being a council, board or body, or, as the case may be, organisations, which are parties to joint voluntary machinery for the settlement of remuneration and conditions of employment but are not parties to the application for a wages council, the Minister shall, before deciding to refer the application to a commission of inquiry, give notice of the application to that council, board or body or, as the case may be, to those organisations, shall consider any observations in writing which may be submitted to him by them within such period as he may direct, not being less than one month from the date of the notice, and, if he decides to refer the application to a commission of inquiry, shall transmit a copy of the observations to the commission.

(4) If, before an application is referred to a commission of inquiry, it is withdrawn by the applicants, no further proceedings shall be had thereon.

References to
commission of
inquiry
without
application for
wages council
order.

3. Without prejudice to the provisions of the last preceding section, the Minister, if, in his opinion, no adequate machinery exists for the effective regulation of the remuneration of any workers or the existing machinery is likely to cease to exist or be adequate for that purpose and a reasonable standard of remuneration amongst those workers will not be maintained, may, without any such application as is mentioned in that section, refer to a commission of inquiry the question whether a wages council should be established with respect to any of those workers and their employers.

4.—(1) Where the Minister makes a reference to a commission of inquiry under either of the two last preceding sections, it shall be the duty of the commission to consider not only the subject matter of the reference but also any other question or matter which, in the opinion of the commission, is relevant thereto, and in particular to consider whether there are any other workers (being workers who, in the opinion of the commission, are engaged in work which is complementary, subsidiary or closely allied to the work performed by the workers specified in the reference or any of them) whose position should be dealt with together with that of the workers, or some of the workers, specified as aforesaid; and, in relation to any such reference to a commission of inquiry, any reference in this Part of this Act to the workers with whom the commission is concerned shall be construed as a reference to the workers specified as aforesaid and any such other workers as aforesaid.

PART I.
—cont.
Proceedings
on references
to commission
of inquiry.

(2) If the commission is of opinion with respect to the workers with whom it is concerned or any of those workers whose position should, in the opinion of the commission, be separately dealt with—

- (a) that there exists machinery set up by agreement between organisations representing workers and employers respectively which is, or which can, by improvements which it is practicable to secure, be made, adequate for regulating the remuneration and conditions of employment of those workers; and
- (b) that there is no reason to believe that that machinery is likely to cease to exist or be adequate for that purpose,

the commission shall report to the Minister accordingly and may include in its report any suggestions which it may think fit to make as to the improvement of that machinery.

(3) Where any such suggestions are so included, the Minister shall take such steps as appear to him to be expedient and practicable to secure the improvements in question.

(4) If the commission is of opinion with respect to the workers with whom it is concerned or any of those workers whose position should, in the opinion of the commission, be separately dealt with—

- (a) that machinery for regulating the remuneration and conditions of employment of those workers is not, and cannot, by any improvements which it is

PART I.
—cont.

practicable to secure, be made, adequate for that purpose, or does not exist; or

- (b) that the existing machinery is likely to cease to exist or be adequate for that purpose,

and that as a result a reasonable standard of remuneration amongst those workers is not being or will not be maintained, the commission may make a report to the Minister embodying a recommendation (in this Act referred to as a "wages council recommendation") for the establishment of a wages council in respect of those workers and their employers.

(5) Where the Minister receives a wages council recommendation, he may, subject to the provisions of this Part of this Act, if he thinks fit, make a wages council order giving effect to the recommendation.

(6) In considering for the purposes of this section whether any machinery is, or is likely to remain, adequate for regulating the remuneration and conditions of employment of any workers, the commission shall consider not only what matters are capable of being dealt with by that machinery, but also to what extent those matters are covered by the agreements or awards arrived at or given thereunder, and to what extent the practice is, or is likely to be, in accordance with those agreements or awards.

Making of
wages council
orders.

5.—(1) Before making a wages council order, whether in pursuance of a wages council recommendation or not, the Minister shall publish, in the prescribed manner, notice of his intention to make the order, specifying a place where copies of a draft thereof may be obtained and the time, which shall not be less than forty days from the date of the publication, within which any objection made with respect to the draft order must be sent to him.

(2) Every objection so made must be in writing and must state—

(a) the specific grounds of objection; and

(b) the omissions, additions or modifications asked for, and the Minister shall consider any such objection made by or on behalf of any person appearing to him to be affected, being an objection sent to him within the time specified in the notice, but shall not be bound to consider any other objection.

(3) If there are no objections which the Minister is required by the last preceding subsection to consider or if, after considering all such objections, he is of opinion that all those objections either—

(a) in the case of an order to be made in pursuance of a wages council recommendation, were made to the

commission of inquiry which made the recommendation and were expressly dealt with in the report embodying that recommendation; or

PART I.
—cont.

- (b) in any case, will be met by modifications which he proposes to make under this subsection or are frivolous,

he may make the order either in the terms of the draft or subject to such modifications, if any, as he thinks fit, being modifications which, in his opinion, do not effect important alterations in the character of the draft order as published.

(4) Where the Minister does not proceed under the last preceding subsection, he may, if he thinks fit, either—

- (a) amend the draft order, in which case all the provisions of this section shall have effect in relation to the amended draft order as they have effect in relation to an original draft order; or

- (b) refer the draft order to a commission of inquiry for inquiry and report, in which case he shall consider its report and may then, if he thinks fit, make an order either in the terms of the draft or with such modifications as he thinks fit.

(5) Where the Minister makes a wages council order, he shall publish it in the prescribed manner, together with the report of any commission of inquiry relating to the order, and the order shall come into operation on the date on which it is so published or on such later date as is specified therein.

6.—(1) The Minister may at any time by order abolish, or vary the field of operation of, a wages council, and the provisions of the last preceding section shall apply in relation to any such order as they apply in relation to wages council orders.

Provided that—

- (a) where any of the wages councils affected by the order is one of the councils in relation to which a central co-ordinating committee has been established under the subsequent provisions of this Part of this Act, the Minister, before making the order, shall consult that committee and take into consideration any observations which it may make to him within fourteen days from the date on which the Minister consults it;
- (b) where the order directs that a wages council shall cease to operate in relation to any workers and that another wages council shall operate in relation to

PART I.
—*cont.*

them, but, save as aforesaid, does not affect the field of operation of any wages council—

(i) the provisions of the last preceding section shall not apply; but

(ii) before making the order, the Minister shall consult the councils concerned; and

(iii) when the order is made the Minister shall publish it in the prescribed manner and it shall come into operation on the date on which it is so published or on such later date as is specified therein.

(2) Without prejudice to the generality of the provisions of the preceding subsection, an application for the abolition of a wages council may be made to the Minister jointly by organisations of workers and organisations of employers which represent respectively substantial proportions of the workers and employers with respect to whom that council operates, on the ground that those organisations jointly provide machinery which is, and is likely to remain, adequate for the effective regulation of remuneration and conditions of employment for those workers, and where such an application is made, the Minister shall either make an order giving effect to the application or refer the application to a commission of inquiry to inquire into and report thereon; and where an application is so referred to such a commission, the last preceding section shall, in relation to an order made in pursuance of a recommendation of that commission, have effect as if any reference in that section to a wages council recommendation included a reference to the recommendation aforesaid.

(3) Where an order of the Minister directs that a wages council shall cease to operate in relation to any workers and that another wages council shall operate in relation to them, the order may provide that anything done by, or to give effect to proposals made by, the first-mentioned council shall have effect in relation to those workers as if it had been done by, or to give effect to proposals made by, the second-mentioned council and may make such further provision as appears to the Minister to be expedient in connection with the transition.

(4) Where an order of the Minister under this section directs that a wages council shall be abolished or shall cease to operate in relation to any workers, then, save as is otherwise provided by the order, anything done by, or to give effect to proposals made by, the wages council shall, except as respects things previously done or omitted to be done, cease to have effect or, as the case may be, cease to have effect in

relation to the workers in relation to whom the council ceases to operate.

(5) In considering for the purposes of this section whether any machinery is, or is likely to remain, adequate for the effective regulation of the remuneration and conditions of employment of any workers, a commission of inquiry shall consider not only what matters are capable of being dealt with by that machinery, but also to what extent those matters are covered by the agreements or awards arrived at or given thereunder, and to what extent the practice is, or is likely to be, in accordance with those agreements or awards.

7.—(1) The provisions of the First Schedule to this Act shall have effect with respect to the constitution, officers and proceedings of wages councils. General provisions as to wages councils.

(2) A wages council shall consider, as occasion requires, any matter referred to it by the Minister or any government department with reference to the industrial conditions prevailing as respects the workers and employers in relation to whom it operates, and shall make a report upon the matter to the Minister or, as the case may be, to that department, and a wages council may, if it thinks it expedient so to do, make of its own motion a recommendation to the Minister or any government department with reference to the said conditions and, where such a recommendation is so made, the Minister or, as the case may be, that department, shall forthwith take it into consideration.

8.—(1) The Minister may, if he thinks fit so to do, by order establish a central co-ordinating committee in relation to any two or more wages councils, or abolish, or vary the field of operation of, any central co-ordinating committee so established: Central co-ordinating committees.

Provided that, except where the next succeeding subsection applies, the Minister shall, before making any such order, consult the wages councils concerned.

(2) Where a commission of inquiry makes a wages council recommendation or a recommendation for the abolition of a wages council, it may include in its report—

(a) in the case of a wages council recommendation, a recommendation for the establishment, in relation to any wages council established in accordance with the recommendation and any other wages council, of a central co-ordinating committee, or for the variation of the field of operation of an existing central co-ordinating committee so that it operates

PART I.
—cont

also in connection with any wages council so established;

- (b) in the case of a recommendation for the abolition of a wages council, a recommendation for the variation of the field of operation of an existing central co-ordinating committee so that it no longer operates in relation to the council to be abolished, or a recommendation for the abolition of any existing central co-ordinating committee theretofore operating in relation to the wages council to be abolished,

and the Minister may make an order giving effect to the recommendation.

(3) The provisions of the First Schedule to this Act shall have effect with respect to the constitution, officers and proceedings of any such central co-ordinating committee.

(4) It shall be the duty of any central co-ordinating committee from time to time—

- (a) to consider whether the field of operation of the wages councils in relation to which it is established is properly divided as between those councils and to report thereon to the Minister;
- (b) to make recommendations to those councils with respect to the principles to be followed by them in the exercise of their powers under this Act;
- (c) to consider any question referred to it by the Minister or by the said councils or any two or more of them, and to report thereon to the Minister, or to the councils which referred the question, as the case may be.

General
provisions as
to commissions
of inquiry.

9.—(1) The provisions of the Second Schedule to this Act shall have effect with respect to the constitution, officers and proceedings of commissions of inquiry.

(2) Where any application, question or other matter is referred under this Part of this Act to a commission of inquiry, the commission shall make all such investigations as appear to it to be necessary and shall publish in the prescribed manner a notice stating the questions which it is its duty to consider by virtue of the reference and further stating that it will consider representations with respect thereto made to it in writing within such period as may be specified in the notice, not being less than forty days from the date of the publication thereof; and it shall consider any representations made to it within that period and then make such

further inquiries as it considers necessary including, so far as it considers necessary, the hearing of oral evidence.

PART I.
—*cont.*

(3) Any power conferred by this Part of this Act on the Minister to make an order giving effect to a recommendation of a commission of inquiry shall be construed as including power to make an order giving effect to that recommendation with such modifications as he thinks fit, being modifications which, in his opinion, do not effect important alterations in the character of the recommendation.

(4) Where the Minister receives any report from a commission of inquiry he may, if he thinks fit, refer the report back to the commission and the commission shall thereupon reconsider it having regard to any observations made by him and shall make a further report, and the like proceedings shall be had on any such further report as in the case of an original report.

PART II.

WAGES REGULATION ORDERS.

10.—(1) Subject to and in accordance with the provisions of this section, any wages council shall have power to submit to the Minister proposals (hereafter in this Act referred to as “wages regulation proposals”)—

Power to
fix
remuneration
and holidays.

(a) for fixing the remuneration to be paid, either generally or for any particular work, by their employers to all or any of the workers in relation to whom the council operates;

(b) for requiring all or any such workers as aforesaid to be allowed holidays by their employers.

The power to submit proposals for fixing remuneration shall include power to submit proposals for fixing holiday remuneration.

(2) Wages regulation proposals for requiring a worker to be allowed a holiday shall not be made unless both holiday remuneration in respect of the period of the holiday and remuneration other than holiday remuneration have been or are being fixed under this Part of this Act for that worker, shall provide for the duration of the holiday being related to the duration of the period for which the worker has been employed or engaged to be employed by the employer who is to allow the holiday, and, subject as aforesaid, may make provision as to the times at which or the periods within which, and the circumstances in which, the holiday shall be allowed; and wages regulation proposals for fixing holiday

PART II.
—cont.

remuneration may contain provisions as to the times at which, and the conditions subject to which, that remuneration shall accrue and shall become payable, and for securing that any such remuneration which has accrued due to a worker during his employment by any employer shall, in the event of his ceasing to be employed by that employer before he becomes entitled to be allowed a holiday by him, nevertheless become payable by the employer to the worker.

3 & 4 Geo. 6.
c. 7.

(3) Before submitting any wages regulation proposals to the Minister, a wages council shall make such investigations as it thinks fit and shall publish, in the prescribed manner, notice of the proposals, stating the place where copies of the proposals may be obtained and the period (which, until the date declared by His Majesty in Council under section four of the Trade Boards and Road Haulage Wages (Emergency Provisions) Act, 1940, to be the date on which the emergency that was the occasion of the passing of that Act came to an end, shall not be less than fourteen days, and thereafter shall not be less than twenty-one days, from the date of the publication of the notice) within which written representations with respect to the proposals may be sent to the council; and the council shall consider any written representations made to it within that period and shall make such further inquiries as it considers necessary and may then submit the proposals to the Minister either without amendment or with such amendments as it thinks fit having regard to the representations:

Provided that—

- (a) if the council, before publishing its proposals, resolves that, in the event of no representation with respect to the proposals being made to it within the said period, the proposals shall, without more, be submitted to the Minister, the proposals shall, if no representation is so made, be submitted to the Minister accordingly;
- (b) where a central co-ordinating committee has been established in relation to wages councils of which the council submitting the proposals is one, the council shall, when it submits its proposals to the Minister, at the same time transmit a copy thereof to that committee and the Minister shall take into consideration any observations which that committee may make to him thereon within fourteen days from the date on which the proposals were submitted to him.

(4) Where the Minister receives any wages regulation proposals, he shall make an order (hereafter in this Act referred

to as a "wages regulation order") giving effect to the proposals as from such date as may be specified in the order:

PART II.
—cont.

Provided that the Minister may, if he thinks fit, refer the proposals back to the council and the council shall thereupon reconsider them having regard to any observations made by the Minister and may, if it thinks fit, re-submit the proposals to the Minister either without amendment or with such amendments as it thinks fit having regard to those observations; and where proposals are so re-submitted, the like proceedings shall be had thereon as in the case of original proposals.

The date to be so specified shall be a date subsequent to the date of the order, and where, as respects any worker who is paid wages at intervals not exceeding seven days, the date so specified does not correspond with the beginning of the period for which the wages are paid, the order shall, as respects that worker, become effective as from the beginning of the next such period following the date specified in the order.

(5) As soon as the Minister has made a wages regulation order, he shall give notice of the making thereof to the wages council and that council shall give such notice of the order and the contents thereof as may be prescribed for the purpose of informing, so far as practicable, all persons who will be thereby affected.

(6) Any wages regulation proposals and any wages regulation order for giving effect thereto may make different provision for different cases, and may also contain provision for the amendment or revocation of previous wages regulation orders.

(7) No wages regulation order shall have effect so as to prejudice any rights as to remuneration or holidays conferred on any worker by or under any Act other than this Act.

(8) Remuneration (including holiday remuneration) fixed by a wages regulation order is hereafter in this Act referred to as "statutory minimum remuneration".

11.—(1) If a contract between a worker to whom a wages regulation order applies and his employer provides for the payment of less remuneration than the statutory minimum remuneration, it shall have effect as if for that less remuneration there were substituted the statutory minimum remuneration, and if any such contract provides for the payment of any holiday remuneration at times or subject to conditions other than those specified in the order, it shall have effect as if for those times or conditions there were substituted the times or conditions specified in the order.

Effect and
enforcement
of wages
regulation
orders.

PART II.
—cont.

(2) If an employer fails to pay to a worker to whom a wages regulation order applies remuneration not less than the statutory minimum remuneration, or fails to pay to any such worker holiday remuneration at the times and subject to the conditions specified in the order or fails to allow to any such worker the holidays fixed by the order, he shall be liable on summary conviction to a fine not exceeding twenty pounds for each offence, and where the employer or any other person charged as a person to whose act or default the offence was due has been found guilty of an offence under this section consisting of a failure to pay remuneration not less than the statutory minimum remuneration, the court may order the employer to pay such sum as is found by the court to represent the difference between the amount which ought to have been paid to the worker by way of remuneration, if the provisions of this Part of this Act had been complied with, and the amount actually so paid.

(3) Where proceedings are brought under the last preceding subsection in respect of an offence consisting of a failure to pay remuneration not less than the statutory minimum remuneration, then, if notice of intention so to do has been served with the summons, warrant or complaint,—

(a) evidence may, on the employer or any other person charged as a person to whose act or default the offence was due having been found guilty of the offence, be given of any like contravention on the part of the employer in respect of any period during the two years immediately preceding the date of the offence; and

(b) on proof of the failure, the court may order the employer to pay such sum as is found by the court to represent the difference between the amount which ought to have been paid during that period to the worker by way of remuneration, if the provisions of this Part of this Act had been complied with, and the amount actually so paid.

(4) The powers given by this section for the recovery of sums due from an employer to a worker shall not be in derogation of any right to recover such sums by civil proceedings.

Permits to
infirm and
incapacitated
persons.

12.—(1) If, as respects any worker employed or desiring to be employed in such circumstances that a wages regulation order applies or will apply to him, the wages council is satisfied on application being made to it for a permit under this section either by the worker or the employer or a prospective employer, that the worker is affected by infirmity or physical incapacity which renders him incapable of earning the statutory minimum remuneration, it may, if it thinks fit, grant,

subject to such conditions, if any, as it may determine, a permit authorising his employment at less than the statutory minimum remuneration, and while the permit is in force the remuneration authorised to be paid to him by the permit shall, if those conditions are complied with, be deemed to be the statutory minimum remuneration.

PART II.
—cont.

(2) Where an employer employs any worker in reliance on any document purporting to be a permit granted under the preceding subsection authorising the employment of that worker at less than the statutory minimum remuneration, then, if the employer has notified the wages council in question that, relying on that document, he is employing or proposing to employ that worker at a specified remuneration, the document shall, notwithstanding that it is not or is no longer a valid permit relating to that worker, be deemed, subject to the terms thereof and as respects only any period after the notification, to be such a permit until notice to the contrary is received by the employer from the council.

13.—(1) Subject to the provisions of this section, any reference in this Part of this Act to remuneration shall be construed as a reference to the amount obtained or to be obtained in cash by the worker from his employer after allowing for the worker's necessary expenditure, if any, in connection with his employment, and clear of all deductions in respect of any matter whatsoever, except any deduction lawfully made—

Computation
of
remuneration

- (a) under the Income Tax Acts, the Unemployment Insurance Acts, 1935 to 1944, the National Health Insurance Acts, 1936 to 1941, or any enactment requiring or authorising deductions to be made for the purposes of a superannuation scheme;
- (b) at the request in writing of the worker, either for the purposes of a superannuation scheme or a thrift scheme or for any purpose in the carrying out of which the employer has no beneficial financial interest, whether directly or indirectly; or
- (c) in pursuance of, or in accordance with, such a contract in that behalf as is mentioned in section one, two or three of the Truck Act, 1896, and in accordance with the provisions of that section.

56 & 60 Vict.
c. 44.

(2) Notwithstanding anything in subsection (1) of this section, wages regulation proposals and wages regulation orders may contain provisions authorising specified benefits or advantages, being benefits or advantages provided, in pursuance of the terms and conditions of the employment of workers, by the employer or by some other person under arrangements with the employer and not being benefits or

PART II.
—cont

advantages the provision of which is illegal by virtue of the Truck Acts, 1831 to 1940, or of any other enactment, to be reckoned as payment of wages by the employer in lieu of payment in cash, and defining the value at which any such benefits or advantages are to be reckoned.

(3) If any payment is made by a worker in respect of any benefit or advantage provided as mentioned in the last preceding subsection, then,—

- (a) if the benefit or advantage is authorised by virtue of that subsection to be reckoned as therein mentioned, the amount of the payment shall be deducted from the defined value for the purposes of the reckoning;
- (b) if the benefit or advantage is authorised by virtue of that subsection to be reckoned as therein mentioned, any excess of the amount of the payment over the defined value shall be treated for the purposes of subsection (1) of this section as if it had been a deduction not being one of the excepted deductions therein mentioned;
- (c) if the benefit or advantage is specified in a wages regulation order as one which has been taken into account in fixing the statutory minimum remuneration, the whole of the payment shall be treated for the purposes of subsection (1) of this section as if it had been a deduction not being one of the excepted deductions therein mentioned.

(4) Nothing in this section shall be construed as authorising the making of any deduction, or the giving of remuneration in any manner, which is illegal by virtue of the Truck Acts, 1831 to 1940, or of any other enactment.

Employers not
to receive
premiums.

14.—(1) Where a worker to whom a wages regulation order applies is an apprentice or learner, it shall not be lawful for his employer to receive directly or indirectly from him, or on his behalf or on his account, any payment by way of premium:

Provided that nothing in this subsection shall apply to any such payment duly made in pursuance of any instrument of apprenticeship not later than four weeks after the commencement of the apprenticeship or to any such payment made at any time if duly made in pursuance of any instrument of apprenticeship approved for the purposes of this proviso by a wages council.

(2) If any employer acts in contravention of this section, he shall be liable on summary conviction in respect of each offence to a fine not exceeding twenty pounds, and the court

may, in addition to imposing a fine, order him to repay to the worker or other person by whom the payment was made the sum improperly received by way of premium.

PART II.
—cont.

15.—(1) The employer of any workers to whom a wages regulation order applies shall keep such records as are necessary to show whether or not the provisions of this Part of this Act are being complied with as respects them, and the records shall be retained by the employer for three years. Records and notices.

(2) The employer of any workers shall post in the prescribed manner such notices as may be prescribed for the purpose of informing them of any wages regulation proposals or wages regulation order affecting them, and, if it is so prescribed, shall give notice in any other prescribed manner to the said workers of the said matters and of such other matters, if any, as may be prescribed.

(3) If an employer fails to comply with any of the requirements of this section, he shall be liable on summary conviction to a fine not exceeding twenty pounds.

16.—(1) Where the immediate employer of any worker is himself in the employment of some other person and that worker is employed on the premises of that other person, that other person shall for the purposes of this Part of this Act be deemed to be the employer of that worker jointly with the immediate employer. Criminal liability of agent and superior employer, and special defence open to employer.

(2) Where an employer is charged with an offence under this Part of this Act, he shall be entitled, upon information duly laid by him and on giving to the prosecution not less than three days' notice in writing of his intention, to have any other person to whose act or default he alleges that the offence in question was due brought before the court at the time appointed for the hearing of the charge; and if, after the commission of the offence has been proved, the employer proves that the offence was due to the act or the default of that other person, that other person may be convicted of the offence, and, if the employer further proves that he has used all due diligence to secure that this Part of this Act and any relevant regulation or order made thereunder are complied with, he shall be acquitted of the offence.

(3) Where a defendant seeks to avail himself of the provisions of subsection (2) of this section:—

(a) the prosecution, as well as the person whom the defendant charges with the offence, shall have the right to cross-examine him if he gives evidence and any witnesses called by him in support of his pleas and to call rebutting evidence;

PART II
—cont.

- (b) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

(4) Where it appears to an officer acting for the purposes of this Part of this Act that an offence has been committed in respect of which proceedings might be taken under this Part of this Act against an employer, and the officer is reasonably satisfied that the offence of which complaint is made was due to an act or default of some other person and that the employer could establish a defence under subsection (2) of this section, the officer may cause proceedings to be taken against that other person without first causing proceedings to be taken against the employer.

In any such proceedings the defendant may be charged with and, on proof that the offence was due to his act or default, be convicted of, the offence with which the employer might have been charged.

Officers.

17.—(1) The Minister, with the approval of the Treasury as to numbers and salaries, may appoint officers to act for the purposes of this Part of this Act, and may, in lieu of or in addition to appointing any officers under this section, arrange with any government department that officers of that department shall act for the purposes of this Part of this Act.

(2) Every officer acting for the purposes of this Part of this Act shall be furnished by the Minister with a certificate of his appointment or authority so to act, and when acting under this Part of this Act shall, if so required by any person affected, produce the certificate to him.

(3) An officer acting for the purposes of this Part of this Act shall have power for the performance of his duties—

- (a) to require the production of wages sheets or other records of wages kept by an employer, and records of payments made to outworkers by persons giving out work, and any other such records as are required by this Part of this Act to be kept by employers, and to inspect and examine those sheets or records and copy any material part thereof;
- (b) to require any person giving out work and any outworker to give any information which it is in his power to give with respect to the names and addresses of the persons to whom the work is given out or from whom the work is received, as the case may be, and with respect to the payments to be made for the work;
- (c) at all reasonable times to enter any premises at which any employer to whom a wages regulation order

PART II.
—cont.

applies carries on his business (including any place used, in connection with that business, for giving out work to outworkers and any premises which the officer has reasonable cause to believe to be used by or by arrangement with the employer to provide living accommodation for workers);

- (d) to inspect and copy any material part of any list of outworkers kept by an employer or person giving out work to outworkers;
- (e) to examine, either alone or in the presence of any other person, as he thinks fit, with respect to any matters under this Part of this Act, any person whom he has reasonable cause to believe to be or to have been a worker to whom a wages regulation order applies or applied or the employer of any such person or a servant or agent of the employer employed in the employer's business and to require every such person to be so examined and to sign a declaration of the truth of the matters in respect of which he is so examined:

Provided that no person shall be required under paragraph (e) of this subsection to give any information tending to criminate himself.

(4) An officer acting for the purposes of this Part of this Act may institute proceedings for any offence under this Part of this Act and may, although not of counsel or a solicitor, conduct any such proceedings.

(5) An officer acting for the purposes of this Part of this Act who is authorised in that behalf by general or special directions of the Minister may, if it appears to him that a sum is due from an employer to a worker on account of the payment to him of remuneration less than the statutory minimum remuneration, institute on behalf of and in the name of that worker civil proceedings for the recovery of that sum and in any such proceedings the court may make an order for the payment of costs by the officer as if he were a party to the proceedings.

The power given by this subsection for the recovery of sums due from an employer to a worker shall not be in derogation of any right of the worker to recover such sums by civil proceedings.

(6) Any person who obstructs an officer acting for the purposes of this Part of this Act in the exercise of any power conferred by this section, or refuses to comply with any requirement of such an officer made in the exercise of any such power, shall be liable on summary conviction to a fine not exceeding twenty pounds.

PART II.
—*cont.*
Penalty for
false entries
in records,
producing
false records or
giving false
information.

18. If any person makes or causes to be made or knowingly allows to be made any entry in a record required by this Part of this Act to be kept by employers, which he knows to be false in a material particular, or for purposes connected with this Part of this Act produces or furnishes, or causes or knowingly allows to be produced or furnished, any wages sheet, record, list or information which he knows to be false in a material particular, he shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months, or to both such fine and such imprisonment.

PART III.

TEMPORARY CONTINUANCE OF CERTAIN PROVISIONS OF CONDITIONS OF EMPLOYMENT AND NATIONAL ARBITRATION ORDER, 1940.

Re-enact-
ment with
modifications
of Part III of
S.R. & O.
1940, No. 1305,
as amended.

19.—(1) As from the day on which Part III of the Conditions of Employment and National Arbitration Order, 1940, made under Regulation fifty-eight AA of the Defence (General) Regulations, 1939, as amended by any subsequent order made thereunder, ceases to have effect, the provisions set out in the Third Schedule to this Act (being the provisions of the said Part III with certain modifications) shall have effect as respects the employment of workers during the period beginning with that day and ending on the thirty-first day of December, nineteen hundred and fifty, and no longer unless Parliament otherwise determines:

Provided that nothing in the said provisions shall apply in relation to any worker with respect to his employment during any period during which his remuneration or minimum remuneration for the work on which he is employed is fixed by or under the Agricultural Wages (Regulation) Act, 1924 (as amended by or under any subsequent enactment), the Road Haulage Wages Act, 1938, the Catering Wages Act, 1943, the Education Act, 1944, or Part II of this Act, or by or under any Defence Regulation.

(2) Where, at the date on which Part III of the said order ceases to have effect, any question has been referred under that Part of that order by the Minister to the National Arbitration Tribunal constituted under that order, but that Tribunal has not made its award, the like proceedings may be had upon the reference as might have been had if the said Part III had not ceased to have effect.

14 & 15 Geo. 5.
c. 37.
1 & 2 Geo. 6.
c. 44.
6 & 7 Geo. 6.
c. 24.
7 & 8 Geo. 6.
c. 31.

PART IV.

MISCELLANEOUS AND GENERAL.

20.—(1) The Trade Boards Acts, 1909 and 1918, are hereby repealed, and the transitional provisions contained in the subsequent provisions of this section shall have effect.

Existing trade boards to become wages councils.

(2) Any trade board established under the said Acts which exists at the commencement of this Act shall, by virtue of this Act and without more, be deemed to be a wages council duly established under Part I of this Act by a wages council order (notwithstanding that its constitution is not in all respects in accordance with the provisions of this Act) and operating in relation to the workers and employers in relation to whom it operated immediately before the commencement of this Act and its style shall be altered accordingly:

Provided that—

- (a) the Minister may by order direct that, on such date as may be specified in the order, its constitution shall be in accordance with the provisions of this Act;
- (b) until such date as may be so specified, any regulations made under the said Acts with respect to its constitution shall, by virtue of this subsection, continue to have effect.

(3) Any district trade committee established under the said Acts by a wages council when it was a trade board which exists at the commencement of this Act shall, until the Minister by order otherwise directs, continue to exist, and shall be constituted, as nearly as may be, as it would have been if the said Acts had not been repealed, and its members shall have the same rights as to allowances as they would have had if the said Acts had not been repealed; and—

- (a) the council may delegate to the committee any of its powers under this Act (except the power to submit wages regulation proposals); and
- (b) where, before the date declared by His Majesty in Council under section four of the Trade Boards and Road Haulage Wages (Emergency Provisions) Act, 1940, to be the date on which the emergency that was the occasion of the passing of that Act came to an end, the council submits any wages regulation proposals to the Minister, it shall, at the same time, inform the committee of the nature of the proposals; and
- (c) on and after the date declared by His Majesty as aforesaid, it shall be the duty of the committee to

PART IV.
—cont.

recommend to the council rates of remuneration for the area for which the committee acts, and no wages regulation proposals shall, so long as the committee exists, be submitted to the Minister by the council unless the proposals give effect to a recommendation of the committee or an opportunity has been given to the committee to report thereon and the council has considered the report (if any) made by the committee.

(4) Any order in force at the commencement of this Act confirming, varying or cancelling any rate under the said Acts or confirming, varying or cancelling holidays provided for by a direction given, or holiday remuneration fixed, under the Holidays with Pay Act, 1938, by a trade board shall have effect as if it were a wages regulation order duly made under Part II of this Act:

1 & 2 Geo. 6.
c. 70.

Provided that—

- (a) the amount of remuneration due to any worker to whom any such order relates shall (subject to any other provision made in that behalf under this Act after the passing thereof) be calculated in like manner as if the enactments repealed by this Act had not been so repealed; and
- (b) where, before the commencement of this Act, notice of proposals to fix, vary or cancel a rate, or as to holidays or holiday remuneration, has been duly given by a trade board, the like proceedings may be had on those proposals as might have been had thereon if the enactments repealed by this Act had not been so repealed, and if an order is made confirming the proposals, that order shall be deemed for the purposes of this subsection to be such an order as is mentioned therein; and
- (c) the Trade Boards and Road Haulage (Holiday Period) Order, 1940, made under Regulation fifty-eight AB of the Defence (General) Regulations, 1939, shall, until the Minister otherwise orders or that Regulation is revoked or expires, continue to have effect in relation to any direction as to holidays given by a trade board in relation to which it had effect immediately before the commencement of this Act.

(5) Any permit granted under subsection (3) of section six of the Trade Boards Act, 1909, as amended by subsection (5) of section five of the Trade Boards Acts, 1918, shall have effect as if it had been granted under the corresponding provision of this Act.

9 Edw. 7. c. 22.
8 & 9 Geo. 5.
c. 32.

(6) Any reference in any document (other than an enactment repealed by this Act) to a trade board shall be construed as including a reference to a wages council.

PART IV.
—cont.

21.—(1) The Minister may make regulations for prescribing Orders and anything which by this Act is required or authorised to be regulations. prescribed.

(2) Any order of the Minister made under Part I of this Act and any regulation made under any of the provisions of this Act shall (together, in the case of an order, with the report of any commission of inquiry relating thereto) be laid as soon as may be before Parliament, and if either House of Parliament, within forty days after any such order or regulation has been laid before it, resolves that the order or regulation be annulled it shall thenceforth be void but without prejudice to the validity of anything done thereunder in the meantime or to the making of a new order or regulation.

(3) In reckoning the said period of forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

(4) Section one of the Rules Publication Act, 1893, shall 56 & 57 Vict. not apply to any such order or regulation as is mentioned in c. 66. subsection (2) of this section.

22. The expenses of the Minister in carrying this Act into Expenses, effect, and any expenses authorised by the Minister with the consent of the Treasury to be incurred by a wages council, a commission of inquiry, or a central co-ordinating committee established under this Act by order of the Minister, shall be defrayed out of moneys provided by Parliament.

23.—(1) In this Act, the following expressions have the Interpretation. meanings hereby respectively assigned to them, that is to say,—

“organisation” includes, in relation to workers, an association of trade unions, and, in relation to employers, an association of organisations of employers;

“superannuation scheme” means any enactment, rules, deed or other instrument, providing for the payment of annuities or lump sums to the persons with respect to whom the instrument has effect on their retirement at a specified age or on becoming incapacitated at some earlier age, or to the personal representatives or the widows, relatives or dependants of such persons on their death or otherwise, whether with or without any further or other benefits;

PART IV.
—cont.

“ thrift scheme ” means any arrangement for savings, for providing money for holidays or for other purposes, under which a worker is entitled to receive in cash sums equal to or greater than the aggregate of any sums deducted from his remuneration or paid by him for the purposes of the scheme;

“ trade union ” includes an association of trade unions;

“ wages council ” and “ commission of inquiry ” mean respectively a wages council and a commission of inquiry established or set up under this Act;

“ worker ” means any person who has entered into or works under a contract with an employer, whether the contract be for manual labour, clerical work or otherwise, be expressed or implied, oral or in writing and whether it be a contract of service or of apprenticeship or a contract personally to execute any work or labour, except that it does not include any person who is employed casually and otherwise than for the purposes of the employer's business.

(2) Any power conferred by this Act to prescribe the manner in which anything is to be published shall include a power to prescribe the date which is to be taken for the purposes of this Act as the date of the publication.

Application to
Scotland.

24. In the application of this Act to Scotland—

(a) for any reference to the Agricultural Wages (Regulation) Act, 1924, there shall be substituted a reference to the Agricultural Wages (Regulation) (Scotland) Act, 1937; and for any reference to the Education Act, 1944, there shall be substituted a reference to the Education (Scotland) Acts, 1872 to 1942.

(b) section eleven shall have effect as if the words in subsections (2) and (3) “ or any other person charged as a person to whose act or default the offence was due ” were omitted;

(c) section sixteen shall have effect as if subsections (2), (3), and (4) were omitted and the following subsections were inserted:—

“ (2) Where an offence for which an employer is, under this Part of this Act, liable to a fine was due to an act or default of an agent of the employer or other person, then, whether proceedings are or are not taken against the employer, that agent or other person may be charged with and convicted of the offence, and shall be liable on conviction to the same punishment as might have been

1 Edw. 8 &
1 Geo. 6. c. 53.

inflicted on the employer if he had been convicted of the offence.

PART IV.
—*cont.*

(3) Where an employer who is charged with an offence under this Part of this Act proves to the satisfaction of the court that he has used due diligence to secure compliance with this Part of this Act and any relevant regulation or order made thereunder and that the offence was due to the act or default of some other person, he shall be acquitted of the offence ”;

(d) section seventeen shall have effect as if subsection (4) were omitted.

25.—(1) This Act may be cited as the Wages Councils Act, 1945.

Short title,
extent and
repeal.

(2) This Act shall not extend to Northern Ireland.

(3) The enactments specified in the first and second columns of the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULES.

FIRST SCHEDULE.

Sections 7 & 8.

CONSTITUTION, OFFICERS AND PROCEEDINGS OF WAGES COUNCILS AND OF CENTRAL CO-ORDINATING COMMITTEES.

1. A wages council or central co-ordinating committee shall consist of persons appointed by the Minister, being—

- (a) not more than three persons chosen by the Minister as being independent persons ;
- (b) such number as the Minister thinks fit of persons who, in his opinion, represent employers in relation to whom the council or, as the case may be, the councils in question, is or are to operate ;
- (c) such number as the Minister thinks fit of persons who, in his opinion, represent workers in relation to whom the council or, as the case may be, the councils in question, is or are to operate.

1ST SCH.
—cont.

2. Of the persons appointed under sub-paragraph (a) of paragraph 1 of this Schedule, one shall be appointed by the Minister to act as chairman, and another may be appointed by the Minister to act as deputy chairman in the absence of the chairman.

3. Before appointing a person under sub-paragraph (b) or sub-paragraph (c) of the said paragraph 1, the Minister shall consult any organisations appearing to him to represent employers, or, as the case may be, workers, concerned, and the persons appointed under those sub-paragraphs shall be equal in number.

4. The Minister may appoint a secretary and such other officers as he thinks fit of a wages council or central co-ordinating committee.

5. The proceedings of a wages council or central co-ordinating committee shall not be invalidated by reason of any vacancy therein or by any defect in the appointment of a member.

6. A wages council or central co-ordinating committee may, if it thinks fit, delegate any of its powers under this Act (except, in the case of a wages council, the power to submit wages regulation proposals) to a committee or, as the case may be, sub-committee consisting of such number of persons, being members of the council or committee, as the council or committee thinks fit :

Provided that the members of the committee or sub-committee representing employers and the members of the committee or sub-committee representing workers shall be equal in number.

7. The Minister may make regulations as to the meetings and procedure of a wages council or central co-ordinating committee and of any committee or, as the case may be, sub-committee thereof, including regulations as to the quorum and the method of voting, but, subject to the provisions of this Act and to any regulations so made, a wages council or central co-ordinating committee and any committee or, as the case may be, sub-committee thereof may regulate its procedure in such manner as it thinks fit.

8. The term for which a member of a wages council or central co-ordinating committee is to hold office shall be such as may be determined by the Minister at the time of his appointment, and the conditions subject to which he is to hold office shall be such as may be prescribed.

9. There may be paid to the members of a wages council or central co-ordinating committee appointed under sub-paragraph (a) of paragraph 1 of this Schedule such remuneration, and to any member of any such council or committee, such travelling and other allowances, as the Minister may, with the consent of the Treasury, determine, and all such remuneration and allowances shall be defrayed as part of the expenses of the Minister in carrying this Act into effect.

SECOND SCHEDULE.

Section 9.

CONSTITUTION, OFFICERS AND PROCEEDINGS OF COMMISSIONS OF INQUIRY.

1. Every commission of inquiry shall consist of persons appointed by the Minister, being—

- (a) not more than three persons chosen by the Minister as being independent persons ;
- (b) not more than two persons chosen by the Minister to represent employers ;
- (c) not more than two persons chosen by the Minister to represent workers.

2. Of the persons appointed under sub-paragraph (a) of paragraph 1 of this Schedule, one shall be appointed by the Minister to act as chairman, and another may be appointed by the Minister to act as deputy chairman in the absence of the chairman.

3. The persons appointed by the Minister under sub-paragraphs (b) and (c) of the said paragraph 1 shall be equal in number and shall be appointed after such consultation as the Minister may consider necessary with such organisations representing employers and workers respectively as he thinks fit, and the said persons shall be persons who, in the opinion of the Minister, are not connected with or likely to be affected by the matters to be inquired into by the commission.

4.—(1) The Minister may appoint such number of persons as he thinks fit as assessors to be available to any commission of inquiry, being persons who, in the opinion of the Minister, have an expert knowledge of any of the matters with which the commission's inquiry is concerned.

(2) An assessor shall not vote or otherwise be a party to any report or recommendation of the commission.

5. The Minister may appoint a secretary and such other officers as he thinks fit of any commission of inquiry.

6. The proceedings of a commission of inquiry shall not be invalidated by reason of any vacancy therein or by any defect in the appointment of a member.

7. The Minister may make regulations as to the meetings and procedure of commissions of inquiry, including regulations as to the quorum, but subject to the provisions of this Act and to any regulations so made, a commission of inquiry may regulate its procedure in such manner as it thinks fit.

8. There shall be paid to members of, and assessors to, any commission of inquiry such remuneration and such travelling and other allowances as the Minister may, with the consent of the Treasury, determine, and all such remuneration and allowances shall be defrayed as part of the expenses of the Minister in carrying this Act into effect.

Section 19.

THIRD SCHEDULE.

PROVISIONS OF PART III OF THE CONDITIONS OF EMPLOYMENT AND
NATIONAL ARBITRATION ORDER, 1940, AS MODIFIED.

1.—(1) Where in any trade or industry in any district terms and conditions of employment are established which have been settled by machinery of negotiation or arbitration to which the parties are organisations of employers and trade unions representative respectively of substantial proportions of the employers and workers engaged in that trade or industry in that district (hereinafter referred to as "recognised terms and conditions"), all employers in that trade or industry in that district shall observe the recognised terms and conditions or such terms and conditions of employment as are not less favourable than the recognised terms and conditions.

(2) For the purposes of this paragraph and subject to the provisions of paragraph 3 of this Schedule terms and conditions of employment shall not be deemed to be less favourable than the recognised terms and conditions if they are in accordance with the terms and conditions relating to workers engaged in similar work which are applicable under—

- (a) any agreement to which the parties are organisations of employers and trade unions which are representative respectively of substantial proportions of the employers and workers engaged or employed in the trade or industry in the district in which the employer is engaged ; or
- (b) any decision of a joint industrial council, conciliation board or other similar body constituted by organisations of employers and trade unions which are representative respectively of substantial proportions of the employers and workers engaged or employed in the trade or industry in the district in which the employer is engaged ; or
- (c) in the absence of any such agreement or decision as is mentioned in the foregoing provisions of this sub-paragraph, any agreement between the particular employer concerned and a trade union which is representative of a substantial proportion of workers employed in the trade or industry in which the employer is engaged ; or
- (d) any award made by the National Arbitration Tribunal constituted under the Conditions of Employment and National Arbitration Order, 1940, the Industrial Court, or any other body or person acting in the capacity of arbitrator relating to the terms and conditions of employment observable by an employer in the same trade or industry in the same district.

2. If any question arises as to the nature, scope or effect of the recognised terms and conditions in any trade or industry in any district or as to whether an employer is or was observing the recognised terms and conditions or is or was observing terms and conditions which are or were not less favourable than the recognised terms and conditions,

that question may be reported to the Minister at any time within twelve months of the date on which the question first arose by any organisation of employers or any trade union which in the opinion of the Minister is an organisation or trade union that habitually takes part in the settlement of wages and working conditions in the trade or industry concerned, and any question so reported shall, if not otherwise disposed of, be referred by him to the Industrial Court for settlement.

3.—(1) In making an award on any question referred by the Minister by virtue of the powers conferred by the last foregoing paragraph, the Industrial Court shall have regard not only to the provisions of sub-paragraph (2) of paragraph 1 of this Schedule but also to any collective agreements concerning the terms and conditions of similar workers in comparable trades or industries.

(2) An award made by virtue of the foregoing provisions of this Schedule may be made retrospective to such date as may be specified in the award, not being earlier than the date on which the question to which the award relates first arose :

Provided that where the question to which the award relates is as to whether an employer is or was observing the recognised terms and conditions or is or was observing terms and conditions not less favourable than the recognised terms and conditions (hereinafter referred to as "the appropriate conditions") and the Industrial Court is satisfied—

- (a) that the employer is not or was not observing the appropriate conditions, and
- (b) that at some date before the date of the reference (to be specified in the award and hereinafter referred to as "the date of knowledge") the employer was aware of those conditions and also was aware or ought to have been aware that those conditions should have been observed by him,

the award shall be made retrospective to the date of knowledge.

The decision of the Industrial Court as to the date from which an award made by virtue of the foregoing provisions of this sub-paragraph shall have effect (hereinafter referred to as "the effective date of the award") shall be conclusive.

(3) Where an award has been made by the Industrial Court in consequence of a report made under the foregoing provisions of this Schedule, then as from the effective date of the award it shall be and, in the case of a retrospective award, shall be deemed to have been, an implied term of the contract between the employer and workers to whom the award applies that the rate of wages to be paid and the conditions of employment to be observed under the contract shall, until varied by a subsequent agreement, decision or award, such as is mentioned in the foregoing provisions of this Schedule, be in accordance with the award.

4.—(1) Any reference in this Schedule to an agreement, decision or award shall be construed as a reference to that agreement, decision or award as modified by any subsequent agreement, decision or award.

(2) In this Schedule the expression "trade or industry" includes the performance of its functions by a public or local authority.

Section 25.

FOURTH SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
9 Edw. 7. c. 22	The Trade Boards Act, 1909.	The whole Act.
3 & 4 Geo. 5. c. clxii.	The Trade Boards Provisional Orders Confirmation Act, 1913.	The whole Act.
6 & 7 Geo. 5. c. 68.	The New Ministries and Secretaries Act, 1916.	In the Schedule, the words "Trade Boards Act, 1909"
8 & 9 Geo. 5. c. 32.	The Trade Boards Act, 1918.	The whole Act.
1 & 2 Geo. 6. c. 70.	The Holidays with Pay Act, 1938.	In the proviso to subsection (2) of section one, the words "the Trade Boards Acts, 1909 and 1918". In subsection (1) of section two, the words "any Trade Board or" and the words "the Trade Boards Acts, 1909 and 1918". In subsection (1) of section three, paragraph (a) and the words "(a) and ", the words "a Trade Board, and " and the word "respectively". In section five, the words "in relation to the Trade Boards Acts, 1909 and 1918, and " and the words "a Trade Board".
2 & 3 Geo. 6. c. 104.	The Control of Employment Act, 1939.	In subsection (1) of section four, the words "or an officer appointed under section fourteen of the Trade Boards Act, 1909", and the words "or officer", wherever they occur, and in subsection (2) of that section, the words "or officer".
3 & 4 Geo. 6. c. 7.	The Trade Boards and Road Haulage Wages (Emergency Provisions) Act, 1940.	In the title, the words "the Trade Boards Acts, 1909 and 1918, and". Section one. In section three, the words "the Trade Boards Acts, 1909 and 1918, or of".